

Case Review: R v Sayegh 1 & 2

R v Sayegh 1 & 2 was a legal case that transpired in 1982. Dunia Sayegh, faced with a manslaughter charge, prompted a preliminary inquiry. Her counsel, concerned about the potential influence of the media on the outcome of the case, sought and obtained an order under the Criminal Code preventing the publication of evidence until the completion of the trial. Present in the courtroom were members of both the Canadian and American media. U.S. journalists promptly made clear their intent to defy the order and publish or broadcast the evidence presented in court. These assertions would further complicate the case and result in the Judge clearing the courtroom under a separate order of the Criminal Code. At that point, all members of the public present in the court except for the prosecution, the accused, their counsel, an interpreter, and the court officers would be required to leave. The order remained in effect for three days to ensure Sayegh's fair and unbiased trial.

However, the judge's order was not met without resistance and sometime later, the Canadian Broadcasting Corporation (CBC) launched a challenge. The CBC argued that Canadian media had the right to attend, and to protect the fairness of the trial, proposed alternatives to the judge. The judge faced such a challenge, sympathized with the Canadian press yet concluded nonetheless that existing statutes did not permit the selective attendance of media members. The order would therefore hold, though under unique circumstances the public would be permitted attendance when delivering trial-related decisions: either the commitment of Sayegh to trial or her discharge. The judge's action was meant to assist the press without compromising their previous dictated order under the Criminal Code and would allow, by that point, for the evidence in the preliminary inquiry to have been heard.

Equally, the actions of said Judge highlight the delicate nature and balance between maintaining the accused's right to a fair trial as well as the public's and the media's right to access court proceedings. Again, though sympathetic to the Canadian media, the Judge placed the accused rights foremost before the public, emphasizing the unique circumstances of the case. Though it is extremely important to communicate information to the public, it is more important to defend an individual's rights to a non-biased trial. If the Judge believed that the press could have a detrimental effect on the legal process, they must respect and protect the individuals involved in the trial. Equally, by removing both Canadian and American media, they remained fair as to their previous order and prevented any accusations of selectivism under the law.

On a related note, R v Sayegh also highlights the capacity of media to influence the public's predisposition to evidence, which would ultimately affect the results of the trial. A contemporary example comes to mind, that of the Johnny Depp and Amber Heard trial. Arguably one of the most 'explosive' trials in recent memory, the media played a massive role even before the commencement of said trial. While Depp was vilified, Heard was seen and presented as a victim. Furthermore, as the case went on the press would feed the fires of scandal as more salacious and outlandish evidence was presented. The public ultimately flipped in their opinion of Depp as a monstrous abuser and Heard as an innocent victim. Both were abusive and both demonstrated unhinged and erratic behaviour. Yet the show-trial nature of the case and the media's hunger to chase such a story undoubtedly poisoned the well of public opinion. In the end and returning to the R v Sayegh case, I believe the judge made the proper call to balance the fair presentation of evidence and yet also allowed the media to gain access at the end of the trial to communicate the results to the public.